

BOXFORD TRAILS ASSOCIATION, INC.

Information Release -- Re: Preservation of Old Chapman Lane

Statement of Purpose: For the past several years the BTA has actively promoted the idea of preserving Old Chapman Lane which had its beginning with an order of the Board of Selectmen in the year 1700 and which served as an official Town road for 200 years. Although maintainance was abandoned by vote of the Town Meeting about 100 years ago, the Lane has continued in active use and remains in excellent condition to this very day. Between Georgetown Road and Boren Lane Old Chapman Lane passes through an unspoiled wooded backland area (which will be referred to as Chapman Lane Woods) located within easy walking distance of the East Village. The purpose of this information release is to inform the Town and the general public of the steps already taken by the BTA to save for all time not only the Lane but also the backland for the use and enjoyment of present and future generations.

Old Chapman Lane -- between Boren Lane and Pye Brook: There were several small parcels of land on the northerly side of Boren Lane which were left over from the Amberwood Development. When the BTA learned that Mr. John Sanidas, the developer, was not interested in retaining ownership, the BTA stepped in and was instrumental in arranging for the Town to take title to these parcels. This transfer was approved by the Town at the Annual Meeting in May of 1990. One of these parcels was a 25 foot wide strip embracing Old Chapman Lane and leading from Boren Lane to Pye Brook. A recreational trail easement for non-motorized use was already in effect.

Ownership of Backland: In the mid 1980's ownership of Chapman Lane Woods was divided between Barbara C. Perley and the family of Walter W. French. On the Assessors Maps an arbitrary line was drawn showing the two lots as contiguous and allocating the westerly part of Chapman lane Woods to Perley (including Old Chapman Lane) and the easterly part toward Depot Road to the French Family. Barbary C. Perley in her will gave these two lots to John J. Strogney of Georgetown; and when he died in 1991, title passed to his two daughters. At this point the BTA began to explore the possibility of acquiring the Strogney Family's two lots.

Title Search: The wording of the deeds for the two Perley-Strogney lots was not clear and a title search was essential before serious negotiations could be initiated. After a very detailed study of records at the Registry of Deeds and the Probate Court it was definitely established that one of the lots owned by the French Family, named the Nat Dorman Lot, was positioned between the two Strogney lots and that this lot included a portion of Old Chapman Lane.

French Family Woodlot: Negotiations were begun with the French Family for the purchase of all of their land located in Chapman Lane Woods amounting to about 15 acres. On July 1, 1993 a deed was signed transferring the property to the BTA. The deed contained the restriction "that the land shall forever remain in its natural state and that it shall be used only for nonmotorized, passive recreational enjoyment". This land is now

known as "The French Family Woodlot" and a permanent granite marker has been installed at a prominent location.

Chapman Lane Lot: Last November Mr. John Sanidas informed the BTA that he would be willing to give to the BTA a parcel of land of about 5/8 acre which is labelled "Chapman Lane" on the "Definitive Subdivision Plan, Amberwood" dated 1983. The gift was accepted and a deed transferring the parcel was signed on January 8, 1994. The deed contains the restriction "that the land shall forever remain as open space - conservation land. The land shall continue to serve as a corridor for a non-motorized recreational trail with unlimited rights of passage on foot, on horseback, on bicycle and on skis". With this latest acquisition the BTA has secured the protection of an additional 482 feet of Old Chapman Lane.

Future Plans: In January title to the Strogney Lots was transferred to Philip Thompson and Janice (Strogney) Thompson. The BTA would like to acquire these lots but has not as yet been able to establish meaningful contact with the Thompsons. The acquisition of these lots would increase the backland holding in Old Chapman Lane Woods to approximately 28 acres.

QUITCLAIM DEED

25
I, John C. Sanidas of Boxford, Essex County, Massachusetts, as Trustee of Waldenfield Realty Trust u/d/t dated July 20, 1983 and recorded with Essex South District Registry of Deeds at Book 7191, Page 1 and as Trustee of Amberwood Development Trust u/d/t dated July 17, 1984 and recorded with said Registry of Deeds at Book 7467, Page 595, both of 33 Newbury Road, Ipswich, Essex County, Massachusetts,

In consideration of One Dollar (\$1.00) paid

Grant to Boxford Trails Association, Inc. of 20 Cross Road, Essex County, Boxford, Massachusetts, a non-profit organization incorporated under the laws of the Commonwealth of Massachusetts,

with QUITCLAIM COVENANTS

the land in said Boxford shown as a parcel with the label "CHAPMAN LANE" on a plan entitled "Definitive Subdivision Plan, Amberwood, Boxford, Mass., Scale: 1" = 100', Date: Sept 20, 1983, Owner/developer: Waldenfield Realty Trust, Engineer: T & M Engineering Associates" and recorded with said Registry of Deeds as Plan 2 of Plan Book 185. Said parcel contains approximately 5/8 acre, more or less, and is more particularly bounded and described as follows:

NORTHEASTERLY by Boren Lane on one course, 100.17 feet;

SOUTHERLY by the intersection of said Boren Lane and said Chapman Lane, 56.52 feet;

SOUTHEASTERLY by lot 17 on said subdivision plan, 239.82 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 8512, Page 540), and by lot 24D on a plan entitled "Plan of land in Boxford, Massachusetts, Property of Waldenfield Realty Trust, T & M Engineering Associates, 83 Pine Street, Peabody, MA, Scale: 1" = 100', March 30, 1989" and recorded with said Registry of Deeds as Plan 2 of Plan Book 251, 250.00 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 9955, Page 460);

SOUTHWESTERLY by land of the Estate of John J. Strogney, on two courses of 29.04 feet and 46.42 feet respectively and by land of Roberta Cargill on one course of 35.97 feet;

NORTHWESTERLY by lot 16A on a plan entitled "Plan of land in Boxford, Mass. for Waldenfield Realty Trust, Scale: 1" = 100', July 17, 1985, T & M Engineering Associates, Inc., 83 Pine Street - Peabody, Mass." and recorded with said Registry of Deeds as Plan 52 of Plan Book 201, 542.08 feet (land now or formerly of John M. Fiore and Cheryl A. Fiore - deed of reference recorded in Book 8206, Page 264);

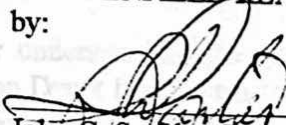
WESTERLY by the intersection of Chapman Lane and Boren Lane, 26.33 feet.

This conveyance is subject to the restriction that the land shall forever remain as open space - conservation land. The land shall continue to serve as a corridor for a non-motorized, recreational trail with unlimited rights of passage on foot, on horseback, on bicycle and on skis. Reference is made to an existing recreational path easement dated February 15, 1985 and recorded with said Registry of Deeds in Book 7663, Page 211.

For title reference, see deeds to John C. Sanidas, Trustee of Waldenfield Realty Trust, (1) from the Trustees of the Charles H. Chaplin Trust dated August 15, 1983 and recorded with said Registry of Deeds in Book 7191, Page 9 and (2) from Barbara C. Perley dated July 11, 1985 and recorded with said Registry of Deeds in Book 7841, Page 411.

Executed as a sealed instrument this 8th day of January, 1994

WALDENFIELD REALTY TRUST
by:


John C. Sanidas, Trustee

AMBERWOOD DEVELOPMENT TRUST
by:

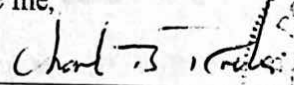

John C. Sanidas, Trustee

COMMONWEALTH OF MASSACHUSETTS

Essex, ss

January 8, 1994

Then personally appeared the above named John C. Sanidas, Trustee of Waldenfield Realty Trust and Trustee of Amberwood Development Trust, all as aforesaid, and acknowledged the foregoing instrument to be his free act and deed, before me,


Notary Public

My commission expires: February 20, 1998

**THOMAS E. NEVE
ASSOCIATES, INC.**

January 31, 1994

Ms. Nancy Merrill, President
Boxford Trails Association, Inc.
Box 95
Boxford, MA 01921

Dear Nancy:

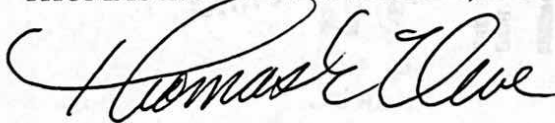
It is our understanding that your Association has acquired land previously owned by Walter French on Depot Road consisting of about 12 acres. We are the record surveyor for the Estate of John Strogney and have been commissioned to conduct a survey of the land owned by the Estate. Following extensive research through title examinations and surveys conducted on the ground we have been unable to establish, with exactness, the boundary line between the Strogney Estate and the French land. I have, however, been able to position it in an appropriate way as to preserve what I believe the intent of the deeds to be.

Please find attached our survey plan which clearly shows the boundary lines of the parcel you have acquired. Note that I have surveyed the land area of 12 acres. At this time I hope that my client and your Association can enter into a Boundary Line Agreement with respect to this common boundary line. This act would facilitate a final resolution to the matter, and it would further avoid tremendous cost by both parties in resolving the matter in Land Court.

Could you please contact me at your earliest convenience so that we can further discuss this matter.

Very truly yours,

THOMAS E. NEVE ASSOCIATES, INC.



Thomas E. Neve, PE, PLS
President

TEN/km

Attachment

#1200 THOMPSON.WPS

• ENGINEERS •

447 Old Boston Road
(508) 887-8586

• LAND SURVEYORS •

U.S. Route #1

• LAND USE PLANNERS •

Topsfield, MA 01983
FAX (508) 887-3480

07/29/96 03:57 Inst 493

BK 13681 PG 573

QUITCLAIM DEED

We, John M. Fiore and Cheryl A. Fiore, of Boxford, Essex County, Massachusetts

IN CONSIDERATION OF FIVE HUNDRED EIGHTY FIVE THOUSAND AND 00/100 (\$585,000.00)

grant to Robert I. Smerling and Irene E. Smerling, husband and wife, as tenants by the entirety, of 43 Boren Lane, Boxford, Essex County, Massachusetts,

WITH QUITCLAIM COVENANTS,

The land in said Boxford with the buildings thereon, being shown as Lot 16A on a plan entitled "Plan of Land in Boxford, Mass. for Waldingfield Realty Trust, Scale: 1" = 100', July 17, 1985 T & M Engineering Associates, Inc., 83 Pine Street-Peabody, Mass." recorded with Essex South District Registry of Deeds as Plan 52 of Plan Book 201:

Said Lot 16A contains 2.9431 acres as shown on said plan and is more particularly bounded and described as follows:

Northeasterly by Boren Lane on two courses, a total of 254.10 feet;
Easterly by the intersection of Boren Lane and Chapman Lane, 26.33 feet;
Southeasterly by Chapman Lane, 542.08 feet;
Southwesterly by land of owners not designated on said plan, 129.01 feet;
Northwesterly by Lot 14A as shown on said plan, 368.74 feet; and,
Northwesterly by Lot 15A as shown on said plan, 283.30 feet.

Together with the right to pass and repass over the subdivision roads shown on a plan entitled "Definitive Subdivision Plan, Amberwood, Boxford, Massachusetts" dated September 20, 1983 and recorded with Essex South District Registry of Deeds in Plan Book 185, Plan 2, namely Amberwood Lane and the extension of Boren Lane, for the purpose of access to and from the public ways known as Depot Road and Boren Lane, but no fee interest in said subdivision road is hereby conveyed. Also, together with the right to use the area shown as "Easement" (Measuring 68.3 feet by 52.9 feet by 58.54 feet by 59.11 feet) on Plan 1 of Plan Book 185, recorded with said Registry of Deeds, for access to and from the said public way known as Boren Lane,; see "Easement" dated February 15, 1984 and recorded with said Registry of Deeds at Book 7351, Page 295.

CANCELLED

DEEDS REG 10
ESSEX SOUTH
8/29/96

TAX 2667.60
CASH 2667.60
RECEIVED 8/29/96
EXETER TAX

9600 + 10000. Boren Lane. Boxford

B 13681 PG 573
100
100

QUITCLAIM DEED

I, ROBERT I. SMERLING of Topsfield, Essex County, Massachusetts
for consideration paid, and in full consideration of less than One
Hundred (\$100.00) Dollars

grant to Robert I. Smerling and Irene E. Smerling, husband and
wife, as tenants by the entirety, both of Topsfield, Essex County.

with quitclaim covenants,

The land in Boxford, Essex County, Massachusetts, being Lot 22 on
a plan entitled "Definitive Subdivision Plan of 'Arrowhead Farm'
located in Boxford, Massachusetts" dated July 23, 1986, revised
November 5, 1986, prepared by Thomas E. Neve Associates, Inc. and
recorded with Essex South District Registry of Deeds in Plan Book
200 as Plan 63, to which plan reference is made for a more
particular description.

Said premises are conveyed subject to and with the benefit of
easements and restrictions of record, if any, insofar as the same
may now be in force and applicable.

Meaning and intending to convey and hereby conveying the same
premises conveyed to this grantor by deed recorded with Essex South
Registry of Deeds, Book 13102 Page 302.

Executed as a sealed instrument this day of July, 1996

Elyabeth D. [Signature]
Witness

[Signature]
Robert I. Smerling

COMMONWEALTH OF MASSACHUSETTS

Middlesex, ss.

July , 1996

Then personally appeared the above named Robert I. Smerling
and acknowledged the foregoing instrument to be his free act and
deed, before me

Elyabeth D. [Signature]
Notary Public

My Commission Expires: 3/21/97

Boxford
Lanes. Boxford
Lanes. Boxford

BOXFORD TRAILS ASSOCIATION, INC
BOX 95
BOXFORD, MA 01921

March 26, 1994

Philip Thompson and Janice E. Thompson
23 Prospect Street
Georgetown, MA 01833

Dear Mr. and Mrs. Thompson,

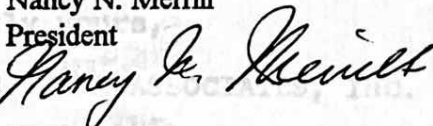
Recognizing that you are now the owners of record of the two lots on Old Chapman Lane in Boxford which were bequeathed to John J. Strogney by the late Barbara C. Perley, the Boxford Trails Association (BTA) felt it advisable to send to you for your information certain pertinent items of correspondence relating to this property and to the property held by the BTA and known as the French Family Wood Lot. These items of correspondence which are being transmitted with this letter are as follows:

- (1) Thomas E. Neve to Walter W. & Etta M. French c/o Charlotte Eaton dated February 2, 1993
- (2) G. Dudley Welch, Counsel for BTA, to Thomas E. Neve dated March 2, 1993
- (3) Nancy N. Merrill, President of BTA, to Estate of John J. Strogney c/o Ms. Karen L. Strogney & Mrs. Janice E. Thompson dated July 30, 1993
- (4) Thomas E. Neve to Ms. Nancy Merrill dated January 31, 1994
- (5) Nancy Merrill to Thomas E. Neve dated February 22, 1994

Your attention is drawn to item (5) which states clearly the position taken by the BTA relative to the plan drawn by Mr. Neve. After the meeting mentioned in this letter was cancelled by Mr. Neve, the BTA was unable to obtain from Mr. Neve's office a new meeting time and date. The BTA stands ready to meet with you to review the facts of the case.

Very truly yours,

Nancy N. Merrill
President



Copies:
Thomas E. Neve
G. Dudley Welch

Enclosure

• ENGINEERS •

• LAND SURVEYORS •

• LAND USE PLANNING •

487 Old Boston Road

Boxford, MA 01921

Phone 508-689-1111

THOMAS E. NEVE
ASSOCIATES, INC.

February 2, 1993

Walter W. & Etta M. French
c/o Charlotte Eaton
18 Middleton Road
Boxford, MA 01921

Dear Mr. & Mrs. French:

I have tried on several occasions to reach you by telephone and have been unsuccessful, therefore, I have decided to write.

We have been hired by the Estate of John Strogney to conduct a survey of his land. Please find enclosed a plan showing the results of our survey. We have printed a line between your property and the Strogney property which we believe, with the best estimates before us, is an accurate position of that line. More according to information found from plans and deeds than information found on the ground in the form of physical monuments. We have, however, represented to the Estate of John Strogney that this line is not a guarantee of the Estate's ownership since physical monuments are lacking in the field, and have recommended that if it is acceptable to you that a boundary line agreement be prepared and executed by you and the Estate of Mr. Strogney to fix forever the location of this line.

This option would save the Estate considerable time and effort in the Land Court proposing the line, and you time and effort in participating in these proceedings.

I would be happy to walk the proposed boundary line with you and explain to you in detail how I reached the conclusions shown on the plan.

If you have any questions regarding this matter please do not hesitate to contact me. I look forward to hearing from you soon.

Very truly yours,

THOMAS E. NEVE ASSOCIATES, INC.

Thomas E. Neve

Thomas E. Neve, PE, PLS
President

TEN/km

Enclosure

• ENGINEERS •

• LAND SURVEYORS •

THOMPSON.WPS

• LAND USE PLANNERS •

Topsfield, MA 01983

447 Old Boston Road

US Route #1

Davis & Welch

Counsellors at Law

Suite E

Lakeside Office Park
Wakefield, MA 01880

Tel: 617 246-3950
Fax: 617 245-3772

Elbridge G. Davis
(1908-1955)

Donald A. Welch
(1943-1990)

G. Dudley Welch

March 2, 1993

Thomas E. Neve Associates, Inc.
447 Old Boston Road - US Route #1
Topsfield, MA 01983

Dear Mr. Neve,

Nancy Merrill has referred to me the plan you have drawn for the Estate of Strogney. Nancy also gave me some of the research done with regard to prior ownership of the area in question and it is apparent to me that there is a lot, known as the Dorman Lot, which bi-sects the land of Strogney. In other words, the Strogney land is not one contiguous lot. I would suggest that this would be the proper interpretation from the description in the Strogney Estate; where the land in paragraph 12 of the Perley Estates is referred to as "my lot of land on the Easterly side" and "my lot of land on the Westerly side of Chapman Lane."

I would be glad to review the deed to the area in question at your convenience. In the meantime, the current plan will not be acceptable and will be challenged, but I don't think that is in everyone's best interests and I am sure an agreement can be reached.

Very truly yours,

G. Dudley Welch,
Counsel for Boxford
Trail Associates

GDW/kmm
cc: French

BOXFORD TRAILS ASSOCIATION, INC.
BOX 95
BOXFORD, MA 01921

July 30, 1993

Estate of John J. Strogney
c/o Ms. Karen L. Strogney & Mrs. Janice E. Thompson
783 Haverhill St. 23 Prospect St.
Rowley, MA 01969 Georgetown, MA 01833

Dear Karen and Janice,

The Boxford Trails Association would like to advise you that it has recently acquired the parcel of land in "Chapman Lane Woods" known as the "French Woodlot". The heirs of Walter and Etta French conveyed the parcel to the Association and it was stipulated in the deed that the land shall forever be used only for passive recreational purposes. Obviously the Boxford Trails Association is very excited about this acquisition and would like to continue the efforts towards preserving the "Chapman Lane Woods" as an open conservation area.

It was determined during the acquisition process that the "French Woodlot" lies between two parcels owned by the Strogney family. The Boxford Trails Association would like to discuss the possibility of acquiring these two parcels. By acquiring these two parcels, the entire "Chapman Lane Woods" could be preserved as a conservation area, which is probably the best use for the area given the wetlands and current zoning restrictions.

Please let me know if there is any interest on the part of the Strogney family in the above and when we might be able to get together to discuss the next step.

Very truly yours,

Nancy N. Merrill, President
Boxford Trails Association, Inc.

Copy

BOXFORD TRAILS ASSOCIATION, INC.
20 CROSS ROAD
BOXFORD, MASSACHUSETTS 01921

February 22, 1994

Dear Mr. Neve,

It was a disappointment that the meeting scheduled for last week had to be cancelled. Harry Martin, Mel Prohl and I discussed the situation again relative to the plan dated January 8, 1993 which you prepared for the Estate of John Strogney, and we decided it would be best if we stated our position in a brief letter before planning another meeting. First we refer you to the letter dated March 2, 1993 which our legal counsel, Mr. G. Dudley Welch of Davis & Welch, sent to you. He pointed out that a seven acre lot identified in the French Family records as the "Nat Dorman Lot" lies between the two Strogney parcels; and hence the Strogney land is not one contiguous lot. He then stated categorically that "the current plan (i.e. the Neve Plan) will not be acceptable and will be challenged". This continues to be the position of the Boxford Trails Association (BTA).

Our position is based on a very extensive title search made for the BTA. This search covered not only the French and Strogney properties but also abutting lots which help to identify the relative locations of the French and Strogney parcels. The abutting lots which are included in the discussion of this letter are: (1) the Town of Topsfield Lot of 8 1/2 acres, so-called because the Town of Topsfield was the owner for 79 years until the year 1901, and which Barbara C. Perley deeded to Henry B. Perley, Barbara H. Perley and Anne E. Perley on December 13, 1985 (Book 8057, Page 409) and (2) the Amberwood lot which Barbara C. Perley deeded to John C. Sanidas on July 11, 1985 (Book 7841, Page 411). The Strogney lot which abuts the Town of Topsfield lot along the mid-line of old Chapman Lane will be referred to as Lot I and the Strogney Lot which abuts the Amberwood lot will be referred to as Lot II

It would be impossible in this brief letter to deal with all of the evidence uncovered in the title search. A few observations derived from the title search follow:

(A) The three lots - Strogney Lot I, BTA Nat Dorman Lot, and Strogney Lot II - all have a common westerly bound, namely the stone wall boundary of the property formerly belonging to Daniel Gould.

(B) The deed for the Town of Topsfield lot contains the following clause: "Beginning at the Northeasterly corner by land formerly of John Dorman and Daniel Peabody but now or formerly of Walter French; thence running Northwesterly by said land of French to the middle of the path leading to the Boxford Meeting House at the big rock situated at the side of said path;" Clearly French property abutted the Town of Topsfield lot along the boundary line specified in the deed. This is confirmed by the deed description for the BTA Nat Dorman lot which states that the abutting property along this same section of boundary line is "land of the town of Topsfield" (From the deed found in Book 2629,

Copy

page 287). Another fact derived from the deed for the Nat Dorman Lot is a required offset of the Northeastly corner of the Town of Topsfield lot of "about two rods" in a Southwesterly direction along the wall of the Henry Perley Pasture - measured from the corner of the stone wall boundary.

(C) Our title search documentation shows conclusively that the common boundary line between the Strogney Lot I and the Nat Dorman Lot is a straight line extension of the boundary line between the Town of Topsfield lot and the Nat Dorman Lot (as described in Item B) - this extension continuing westerly to the stone wall boundary of land formerly of Daniel Gould.

(D) Our documentation also shows a match-up of the bounds between the Nat Dorman Lot and the Strogney Lot II along an Easterly-Westerly common boundary line.

The deed by which the heirs of Walter W. French transferred all of their right, title and interest in any and all land, roads, lanes and easements in the Chapman Lane Woods area to the BTA contains the restriction "that the land shall forever remain in its natural state and that it shall be used only for nonmotorized, passive recreational enjoyment". It is therefore an obligation of the BTA to preserve and protect the former French property as open space - conservation land.

The BTA stands ready to meet with you and review in detail the facts presented in this letter.

Very truly yours,

Nancy Merrill

Nancy Merrill
President, BTA

SOUTHERLY by the intersection of said Boren Lane and said Chapman Lane, 259.42 feet (land now of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 8517, Page 460);

NORTHWESTERLY by lot 16A on a plan entitled "Plan of land in Buxford, Mass. for Waldenfield Realty Trust, Scale: 1" = 100', July 17, 1985, T & M Engineering Associates, Inc., 73 Pine Street - Peabody, Mass." and recorded with said Registry of Deeds as Plan 52 of Plan Book 201, 542.08 feet (land now or formerly of John M. Fiore and Cheryl A. Fiore - deed of reference recorded in Book 8206, Page 264);

WESTERLY by the intersection of Chapman Lane and Boren Lane, 26.37 feet.

BK 12382 - 438

QUITCLAIM DEED

I, John C. Sanidas of Boxford, Essex County, Massachusetts, as Trustee of Waldenfield Realty Trust u/d/t dated July 20, 1983 and recorded with Essex South District Registry of Deeds at Book 7191, Page 1 and as Trustee of Amberwood Development Trust u/d/t dated July 17, 1984 and recorded with said Registry of Deeds at Book 7191, Page 1, Newbury Road, Ipswich, Essex County, Massachusetts,

In consideration of One Dollar (\$1.00) paid

Grant to Boxford Trails Association, Inc. of 20 Acres, Essex County Registry of Deeds, Massachusetts, a non-profit organization incorporated under the laws of the State of Massachusetts, 36 Federal Street, Salem, MA 01970

with QUITCLAIM COVENANTS

01/18/94

the land in said Boxford shown as a parcel with # 846 Rec: time 0121 Type DEED 25.00
entitled "Definitive Subdivision Plan, Amberwood, Boxford, Mass., Date
Sept 20, 1983, Owner/developer: Waldenfield Realty Trust, T & M Engineering
Associates" and recorded with said Registry of Deeds as Plan 2 of Plan Book 183. Said
parcel contains approximately 5/8 acre, more # 847 Payment Check 25.00
described as follows:

NORTHEASTERLY by Boren Lane on one course, 100.17 feet;

SOUTHERLY by the intersection of said Boren Lane and said Chapman Lane,
56.52 feet;

SOUTHEASTERLY by lot 17 on said subdivision plan, 239.82 feet (land now or
formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 8512,
Page 540), and by lot 24D on a plan entitled "Plan of land in Boxford, Massachusetts,
Property of Waldenfield Realty Trust, T & M Engineering Associates, 83 Pine Street,
Peabody, MA, Scale: 1" = 100', March 30, 1989" and recorded with said Registry of Deeds
as Plan 2 of Plan Book 251, 250.00 feet (land now or formerly of Patrick J. Riley and
Patricia Riley - deed of reference recorded in Book 9955, Page 460);

SOUTHWESTERLY by land of the Estate of John J. Strogney, on two courses of 29.04
feet and 46.42 feet respectively and by land of Roberta Cargill on one course of 35.97 feet;

NORTHWESTERLY by lot 16A on a plan entitled "Plan of land in Boxford, Mass. for
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In consideration of One Dollar (\$1.00) paid

Grant to Boxford Trails Association, Inc. of 20 Cross Road, Essex County, Boxford, Massachusetts, a non-profit organization incorporated under the laws of the Commonwealth of Massachusetts,

with QUITCLAIM COVENANTS

the land in said Boxford shown as a parcel with the label "CHAPMAN LANE" on a plan entitled "Definitive Subdivision Plan, Amberwood, Boxford, Mass., Scale: 1" = 100', Date: Sept 20, 1983, Owner/developer: Waldenfield Realty Trust, Engineer: T & M Engineering Associates" and recorded with said Registry of Deeds as Plan 2 of Plan Book 185. Said parcel contains approximately 5/8 acre, more or less, and is more particularly bounded and described as follows:

NORTHEASTERLY by Boren Lane on one course, 100.17 feet;

SOUTHERLY by the intersection of said Boren Lane and said Chapman Lane, 56.52 feet;

SOUTHEASTERLY by lot 17 on said subdivision plan, 239.82 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 8512, Page 540), and by lot 24D on a plan entitled "Plan of land in Boxford, Massachusetts, Property of Waldenfield Realty Trust, T & M Engineering Associates, 83 Pine Street, Peabody, MA, Scale: 1" = 100', March 30, 1989" and recorded with said Registry of Deeds as Plan 2 of Plan Book 251, 250.00 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 9955, Page 460);

SOUTHWESTERLY by land of the Estate of John J. Strogney, on two courses of 29.04 feet and 46.42 feet respectively and by land of Roberta Cargill on one course of 35.97 feet;

NORTHWESTERLY by lot 16A on a plan entitled "Plan of land in Boxford, Mass. for Waldenfield Realty Trust, Scale: 1" = 100', July 17, 1985, T & M Engineering Associates, Inc., 83 Pine Street - Peabody, Mass." and recorded with said Registry of Deeds as Plan 52 of Plan Book 201, 542.08 feet (land now or formerly of John M. Fiore and Cheryl A. Fiore - deed of reference recorded in Book 8206, Page 264);

WESTERLY by the intersection of Chapman Lane and Boren Lane, 26.33 feet.

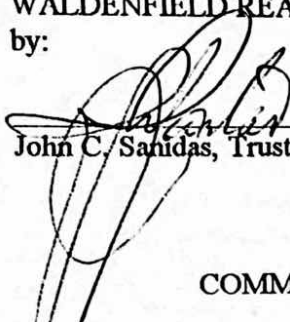
This conveyance is subject to the restriction that the land shall forever remain as open space - conservation land. The land shall continue to serve as a corridor for a non-motorized, recreational trail with unlimited rights of passage on foot, on horseback, on bicycle and on skis. Reference is made to an existing recreational path easement dated February 15, 1985 and recorded with said Registry of Deeds in Book 7663, Page 211.

For title reference, see deeds to John C. Sanidas, Trustee of Waldenfield Realty Trust, (1) from the Trustees of the Charles H. Chaplin Trust dated August 15, 1983 and recorded with said Registry of Deeds in Book 7191, Page 9 and (2) from Barbara C. Perley dated July 11, 1985 and recorded with said Registry of Deeds in Book 7841, Page 411.

Executed as a sealed instrument this 8th day of January, 1994

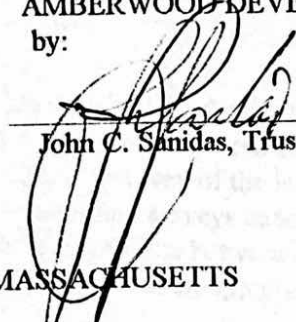
WALDENFIELD REALTY TRUST

by:


John C. Sanidas, Trustee
Essex, ss

AMBERWOOD DEVELOPMENT TRUST

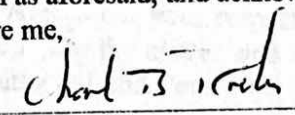
by:


John C. Sanidas, Trustee

COMMONWEALTH OF MASSACHUSETTS

January 8, 1994

Then personally appeared the above named John C. Sanidas, Trustee of Waldenfield Realty Trust and Trustee of Amberwood Development Trust, all as aforesaid, and acknowledged the foregoing instrument to be his free act and deed, before me,


Notary Public
My commission expires: February 20, 1998

**THOMAS E. NEVE
ASSOCIATES, INC.**

January 31, 1994

Ms. Nancy Merrill, President
Boxford Trails Association, Inc.
Box 95
Boxford, MA 01921

Dear Nancy:

It is our understanding that your Association has acquired land previously owned by Walter French on Depot Road consisting of about 12 acres. We are the record surveyor for the Estate of John Strogney and have been commissioned to conduct a survey of the land owned by the Estate. Following extensive research through title examinations and surveys conducted on the ground we have been unable to establish, with exactness, the boundary line between the Strogney Estate and the French land. I have, however, been able to position it in an appropriate way as to preserve what I believe the intent of the deeds to be.

Please find attached our survey plan which clearly shows the boundary lines of the parcel you have acquired. Note that I have surveyed the land area of 12 acres. At this time I hope that my client and your Association can enter into a Boundary Line Agreement with respect to this common boundary line. This act would facilitate a final resolution to the matter, and it would further avoid tremendous cost by both parties in resolving the matter in Land Court.

Could you please contact me at your earliest convenience so that we can further discuss this matter.

Very truly yours,

THOMAS E. NEVE ASSOCIATES, INC.



Thomas E. Neve, PE, PLS
President

TEN/km

Attachment

Copies To:

✓ Mel Perlel
✓ Dudley Welch
✓ Pat Kelly
✓ Harry Martin
Tom Cargill
Ned Sullivan

Kathy -

Tues - 1 PM

Call Mon to confirm

Committee will
meet with Tom -
Mel & Harry

#1200 THOMPSON.WPS

• ENGINEERS •

447 Old Boston Road
(508) 887-8586

• LAND SURVEYORS •

U.S. Route #1

• LAND USE PLANNERS •

Topsfield, MA 01983
FAX (508) 887-3480

August 12, 1993

Mr. G. Dudley Welch
Davis & Welch
Lakeside Office Park, Suite E
Wakefield, MA 01880

Dear Dudley,

I was at the Registry of Deeds yesterday and I picked up a copy of the French / BTA deed. I noted that the reference to a plan by Donohoe and Parkhurst had not been deleted as we had planned to do. I enclose a copy of the first page of the deed with the deletion indicated thereon. I trust that you will take care of this matter.

I hope that there will be no problem in making the deletion at the Registry. If complications do arise, please let Nancy or me know.

Sincerely,

Mel Prohl

51 Towne Road, Boxford, MA 01921
Tel. 508 887 8443

Copy: Nancy N. Merrill

4/1/92 - Notes made by Nancy N. Merrill

Talked with Dave Woonton

- resigning from Planning Board and Land Acquisition Committee
- Attend tonight's meeting to talk about Chapman Lane.
- Public Hearing on King Edward Court.
 - press for access to Georgetown-Rowley State Forest from sub-division for the local residents and for the town.
 - press for shoulder path along sub-division road.

Called Fred True, Georgetown, John Strogney's lawyer.

- he needs copies of the deeds that show a cloudy title. a report of Mel Prohl's findings. Mel should write a report stating his findings.

- The Town can clear the title after we settle on a price for all parties by having a warrent article stating:

To see if the Town will vote to acquire by purchase of otherwise the following described land '.....' and further to appropriate for the purchase a sum of money (or dollar amount) and raise this by transferring from capital outlay or the Conservation Fund.

the 'otherwise' term means 'by eminent domain' which will clear title for a town. This is fine when the price is determined beforehand. Town can also put in the warrent 'to hold harmless' which will prevent unlimited damages from arising from someone.

- Town can not give to charity. example was the Hurrican of 1938. Town agreed to send work crews on private property to cut trees. Town can't spend public funds on private land.

- People can donate to Greenbelt for purchase, then Greenbelt could turn money over to the Town for purchase.

- When Town owns land, the group that oversees the property must vote not to use the land anymore before the Town can go before Town Meeting to vote to sell the land. The Conservation Commission should govern this open space because they are not likely to vote to sell the land. They will hold it for open space protection for the Town. If the Town cannot buy the land, can ask to place a CR on the land to protect certain aspects of the land, such as limited building. - Chapman parcel could be sold as one house lot.

Benefits - save taxes for single house owner. because the land would be assessed as one house lot.

Draft

3-29-92

Dear Dave, Woonston

I talked with Karen Strogney on Saturday, 3/28/92. She did not receive my letter dated 2/22/92

I will send her a copy.

I think it would be appropriate to enclose ^{and} another letter stating our position clearer.

The Boxford Community wants to preserve the Historic Chapman Lane and in the spirit of the Bay Circuit program, protect it with the surrounding open space owned by the heirs of John Strogney and the heirs of Walter K. French.

If there is clear access to this land and clear title, we will offer a reasonable market price. If there is no clear title, and/or clear access, then we are prepared to negotiate with the two families to come to a reasonable price for all concerned.

We feel there is a clouded title. The last deed written was for 8 acres sold to Henry B. PERley from Barbara PERley, Dec. 13, 1985, deed 8057, page 409. The northwesterly boundary is described as belonging to the heirs of Walter K. French. The accessors map show this line to belong half to the French Family and half to B. Perley/Strogney. This is where the confusion begins.

cc Eliza Gope

20 Cross Road
Boxford, Ma. 01921
February 22, 1992

Karen Strogney
Millwood Apts. 9B
Rowley, Ma. 01969

Dear Karen,

Mel Prohl and I met with the Boxford Land Acquisition Committee
Thursday evening, February 20, 1992.

The Land Acquisition Committee is very much interested in this
land for use by the Town. We would like to give you an offer
when there is a clear title.

Please advise at your earliest convenience.

Sincerely,

Nancy N. Merrill

Nancy N. Merrill
Chairman,
Bay Circuit Program Committee

cc: Boxford Land Acquisition Committee

Very truly yours,

Christopher L. Stunkert

PLUNKETT & PLUNKETT

Attorneys at Law

PEABODY BUILDING
120 WASHINGTON STREET
SALEM, MASSACHUSETTS 01970

BARRY W. PLUNKETT
CHRISTOPHER L. PLUNKETT
LAURA L. DEOROCKI
JAMES M. COTE

(508) 744-2444
Facsimile:
(508) 744-7961

of Counsel
Robert J. Plunkett
(1906-1987)

February 20, 1992

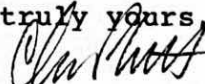
Ms. Nancy Merrill
20 Cross Road
Boxford, MA 01921

Re: Chapman Lane, Boxford, MA

Dear Nancy:

Per your request of February 9, 1992, I have briefly reviewed the documentation you delivered to me relative to ownership to Chapman Lane and, in particular, have been concerned with the two questions you raised in your memo. In order for me to completely and fully determine and render an opinion relative to ownership of Chapman Lane, I would need to review in detail not only all of the documentation and title information you delivered to me but to further have a more thorough and complete title examination on all the land in which Chapman Lane crosses or abuts. I could then make a determination from a review of this undoubtedly extensive package of documentation and the title reports of the ownership of Chapman Lane. I do, however, believe this would be a massive undertaking which would require a great deal of time and expense. A short answer as to who owns Chapman Lane is the general accepted practice that any party or entity that owns property which abuts a private way owns to the center line of that private way unless otherwise excluded. Therefore, you would assume, unless determined otherwise, all property owners who abut Chapman Lane own to the center line of Chapman Lane. This ownership right in Chapman Lane is also subject to the rights of others, if any rights exist to use Chapman Lane in common with the owner thereto.

As to your question of value to the possible land locked parcel, I think that is better answered by a real estate appraiser.

Very truly yours,


Christopher L. Plunkett

CLP:kb

13 SEPTEMBER 1991

Boxford Selectmen
Boxford Land Acquisition Committee
Boxford Planning Board
Boxford Conservation Commission
Boxford Recreation Committee

Date: June, 1991

NANCY N. MERRILL
20 CROSS ROAD
BOXFORD, MA. 01921

DEAR NANCY:

IT HAS BEEN A WHILE SINCE WE HAVE DISCUSSED A POSSIBLE PURCHASE OF MY FATHER'S PROPERTY IN BOXFORD. I FIND IT NECESSARY TO MAKE A DISPOSITION OF THIS PROPERTY IN THE NEAR FUTURE.

I KNOW THE BAY CIRCUIT PROGRAM IS INTERESTED IN PRESERVING THE ACREAGE AS OPEN SPACE. PER YOUR LAST LETTER YOU HAD MENTIONED A NUMBER OF GROUPS THAT COULD POSSIBLY BE HELPFUL WITH THE FUNDING FOR A PURCHASE.

PLEASE LET ME KNOW IF THERE HAVE BEEN ANY NEW DEVELOPMENTS IN OBTAINING SUCH FUNDING.

SINCERELY,

Karen L. Strogney

KAREN L. STROGNEY
783 HAVERHILL ST
ROWLEY, MA. 01969

Signed:

Name

Address

Phone

Memo to Boxford Selectmen
Boxford Land Acquisition Committee
Boxford Planning Board
Boxford Conservation Commission
Boxford Recreation Committee

Date: June, 1991

Re: Chapman Lane Preservation

Chapman Lane was laid out as a public way in 1700 as a public way from the First Meetinghouse to 'Old Andover' Road (now Ipswich Road). Although it was discontinued in 1850, Chapman Lane continued to be used by Boxford residents, as a woods road to access wood lots and as a trail for passive recreation.

In 1990, Chapman Lane, became part of the northern linkage through Boxford for the Bay Circuit trail that links Georgetown-Rowley State Forest with Boxford State Forest (Bald Hill Reservation).

We, concerned citizens of Boxford, feel Chapman Lane should be preserved, as well as the 17 acres surrounding the Lane. This is an oasis of open space - to preserve the 17 acres is in the spirit of the Bay Circuit Program.

It may also be appropriate to annex abutting woodlands to increase this parcel of open space in the center of a residential community. There may also be other plans worth considering - some development and the preservation of historic Chapman Lane.

We urge you to work with the Trust for Public Land and the landowners to creatively plan the preservation of Chapman Lane and the abutting forest lands.

Signed:

Name

Address

phone

Sincerely,

Nancy G. Merrill
Chairman, Boxford Bay
Circuit Program Committee

20 Cross Road
Boxford, Ma. 01921
June 19, 1991

Ms Karen Strogney
783 Haverhill Street
Rowley, Ma. 01969

Dear Karen,

The Bay Circuit Program in Boxford thanks you and your father for extending permission to include Chapman Lane in the routing of the Bay Circuit through Boxford for the northern linkage between open spaces. We understand that this permission is not binding upon future owners.

We are hoping that this Lane can remain a passive recreation woods lane for future generations to enjoy.

To that pursuit, I am continuing to talk to a number of groups that I hope will help in the purchase of this land for the Bay Circuit and as open space. I have been talking with:

The Trust for Public Land, Eliza Cope, 67 Batterymarch,
Boston, Ma. 02110-3306 (617) 737-0261
Boxford Selectmen
Boxford Planning Board
Boxford Conservation Commission
Boxford Land Acquisition Committee
Boxford Recreation Committee
Boxford Trails Association, Inc.
Bay Circuit Alliance
National Park Service, River and Trail Conservation Division
Massachusetts Department of Environmental Management, Bay
Circuit Program.

Sincerely,

Nancy N. Merrill
Chairman, Boxford Bay
Circuit Program Committee



Boxford Trails Association

Boxford, Massachusetts 01921

February 10, 1994

Dear John,

On behalf of the Boxford Trails Association,
I wish to thank you for the land that
contains the Chapman Lane Trail, in front
Bren Lane and between the Two house
lots of Riley and Fiore.

Enclosed is our check for \$1.00..

On another matter - we, who ride, thank you
for letting us ride up your drive way and share your
wood bin section to the Cargill Trail - we will
not publish this trail.

Sincerely,
Nancy A. Merrill
President - BTA

Guards -
Jan 18 - recorded
early March
BK 12382 pg 438

QUITCLAIM DEED

I, John C. Sanidas of Boxford, Essex County, Massachusetts, as Trustee of Waldenfield Realty Trust u/d/t dated July 20, 1983 and recorded with Essex South District Registry of Deeds at Book 7191, Page 1 and as Trustee of Amberwood Development Trust u/d/t dated July 17, 1984 and recorded with said Registry of Deeds at Book 7467, Page 595, both of 33 Newbury Road, Ipswich, Essex County, Massachusetts,

In consideration of One Dollar (\$1.00) paid

Grant to Boxford Trails Association, Inc. of 20 Cross Road, Essex County, Boxford, Massachusetts, a non-profit organization incorporated under the laws of the Commonwealth of Massachusetts,

with QUITCLAIM COVENANTS

the land in said Boxford shown as a parcel with the label "CHAPMAN LANE" on a plan entitled "Definitive Subdivision Plan, Amberwood, Boxford, Mass., Scale: 1" = 100', Date: Sept 20, 1983, Owner/developer: Waldenfield Realty Trust, Engineer: T & M Engineering Associates" and recorded with said Registry of Deeds as Plan 2 of Plan Book 185. Said parcel contains approximately 5/8 acre, more or less, and is more particularly bounded and described as follows:

NORTHEASTERLY by Boren Lane on one course, 100.17 feet;

SOUTHERLY by the intersection of said Boren Lane and said Chapman Lane, 56.52 feet;

SOUTHEASTERLY by lot 17 on said subdivision plan, 239.82 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 8512, Page 540), and by lot 24D on a plan entitled "Plan of land in Boxford, Massachusetts, Property of Waldenfield Realty Trust, T & M Engineering Associates, 83 Pine Street, Peabody, MA, Scale: 1" = 100', March 30, 1989" and recorded with said Registry of Deeds as Plan 2 of Plan Book 251, 250.00 feet (land now or formerly of Patrick J. Riley and Patricia Riley - deed of reference recorded in Book 9955, Page 460);

SOUTHWESTERLY by land of the Estate of John J. Strogney, on two courses of 29.04 feet and 46.42 feet respectively and by land of Roberta Cargill on one course of 35.97 feet;

NORTHWESTERLY by lot 14 on a plan entitled "Plan of land in Boxford, Mass. for Waldenfield Realty Trust, Scale: 1" = 100', July 17, 1985, T & M Engineering Associates, Inc., 83 Pine Street - Peabody, Mass." and recorded with said Registry of Deeds as Plan 52 of Plan Book 201, 542.08 feet (land now or formerly of John M. Fiore and Cheryl A. Fiore - deed of reference recorded in Book 8206, Page 264);

WESTERLY by the intersection of Chapman Lane and Boren Lane, 26.33 feet.

This conveyance is subject to the restriction that the land shall forever remain as open space - conservation land. The land shall continue to serve as a corridor for a non-motorized, recreational trail with unlimited rights of passage on foot, on horseback, on bicycle and on skis. Reference is made to an existing recreational path easement dated February 15, 1985 and recorded with said Registry of Deeds in Book 7663, Page 211.

For title reference, see deeds to John C. Sanidas, Trustee of Waldenfield Realty Trust, (1) from the Trustees of the Charles H. Chaplin Trust dated August 15, 1983 and recorded with said Registry of Deeds in Book 7191, Page 9 and (2) from Barbara C. Perley dated July 11, 1985 and recorded with said Registry of Deeds in Book 7841, Page 411.

Executed as a sealed instrument this

day of January, 1994

WALDENFIELD REALTY TRUST
by:

AMBERWOOD DEVELOPMENT TRUST
by:

John C. Sanidas, Trustee

John C. Sanidas, Trustee

COMMONWEALTH OF MASSACHUSETTS

Essex, ss

January , 1994

Then personally appeared the above named John C. Sanidas, Trustee of Waldenfield Realty Trust and Trustee of Amberwood Development Trust, all as aforesaid, and acknowledged the foregoing instrument to be his free act and deed, before me,

Notary Public

My commission expires:

SIXTH: I give the sum of One Thousand (\$1,000.00) Dollars to each of the following named persons if they shall have survived me:

RUTH CHAPMAN, 2 Prince Street, Marblehead, Mass.

MARJORIE LINEKIN, Country Haven Nursing Home, Norton, Mass. 02766

LOUISA WOODWARD, 101 Sherwood Circle, East Bridgewater, Mass.

ARTHUR P. PHILLIPS, Mill Road, Boxford, Mass.

SEVENTH: I give Two Thousand (\$2,000.00) Dollars to the Harmony Cemetery Corporation, Inc., of Boxford, Massachusetts to be used towards the maintenance of ancient graves.

EIGHTH: I give to the Document Center of West Boxford, Five Thousand (\$5,000.00) Dollars, the income only to be used toward the maintenance of said Center.

NINTH: I give to the Ladies Benevolent Society of the East Parish Church the sum of Three Thousand (\$3,000.00) Dollars to be added to the "Perley Fund", so called, to make a total of \$5,000.00. The interest only is to be used for general purposes.

TENTH: I give to the Sarah P. Perley Fund Three Thousand (\$3,000.00) Dollars, the income only to be used as specified in the original gift.

ELEVENTH: I give to the said ALERSON E. NOYES Five Thousand (\$5,000.00) Dollars to be used to repair the barns referred to in Article Fourth herein, if he survives me.

TWELFTH: If he survives me, I give to JOHN J. STROGNEY of Heather Road, Georgetown, Massachusetts my lot of land on the easterly side of Chapman Lane in said Boxford, Massachusetts containing 7 acres, more or less, and my lot of land on the Westerly side of Chapman Lane in said Boxford containing 10 acres, more or less.

Suzanne Parker

Barbara C. Perley

Preservation of Chapman Lane

Who am I? Trails & Open Space
Member: BTA / BSFAc

Brief Comments / Answer Questions

What is Chapman Lane?

The Open Space Owners: Strogney Family
~ 26 to 27 Ac French Family
No Access Several Swamps

Strogney Land: Ancil Dorman #1 7 Ac
Hayward Lot 5.5 Ac (17)
(T Albert Perley 13 Ac) 12.5 Ac

French Land: Nat Dorman Lot 7 Ac (8.5)
Ancil Dorman #2 7.6 Ac
14.6 Ac

Land Boundaries: External Boundary (Covered by surveys)
+ plans
Internal Boundaries (Indeterminate)

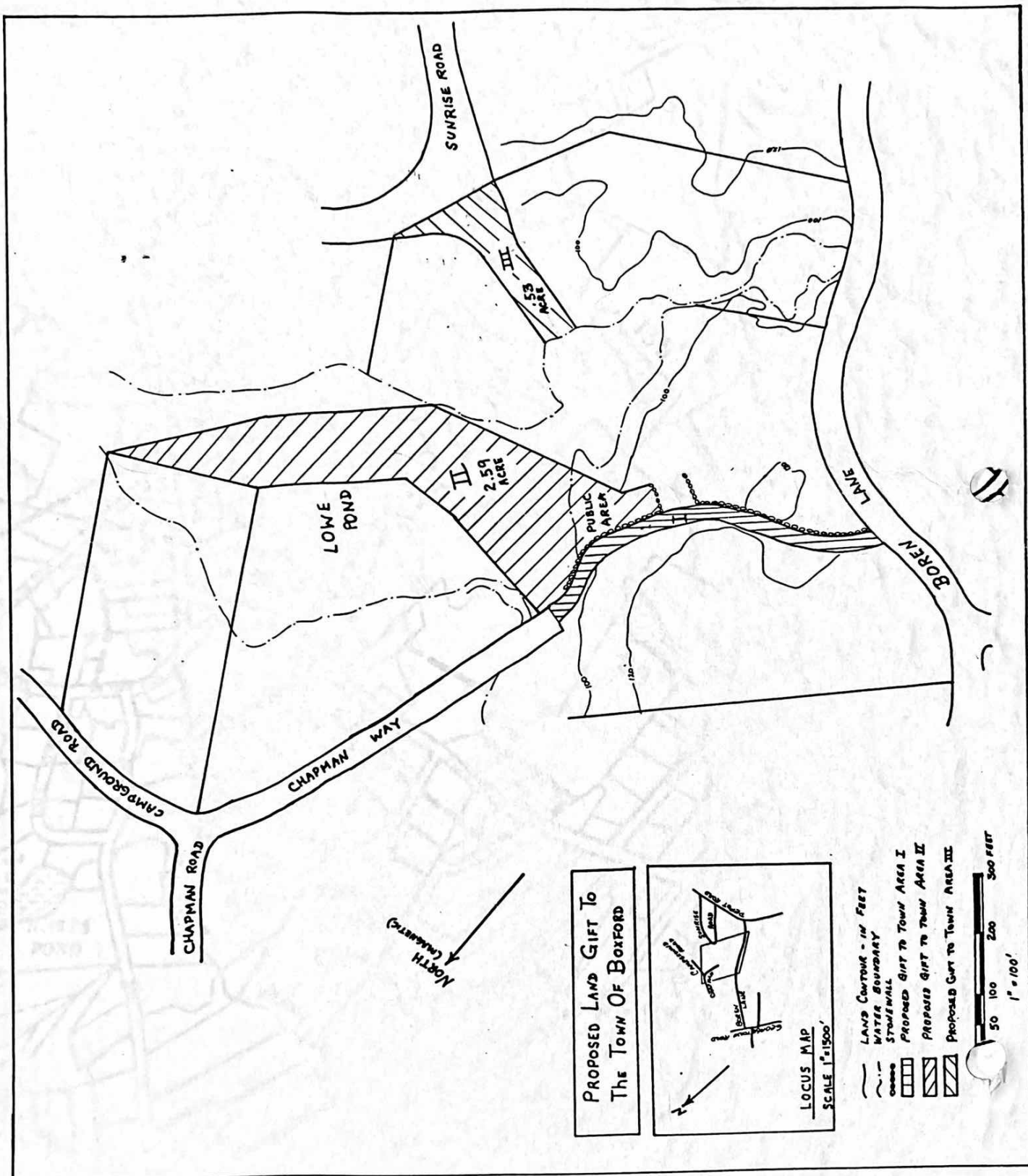
Purchase Procedure Example: Perley to Sanidas Deed

Offer Assistance Title search by Town
Site Walk Oct 26 @ 1:00 pm
Sat.

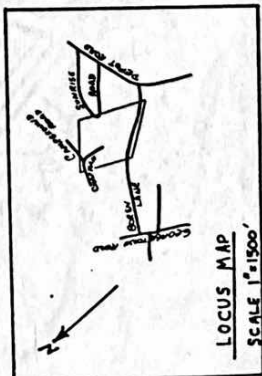
Recommendation Ideal open space

Close to East Village with through trail
to Campground Road Area

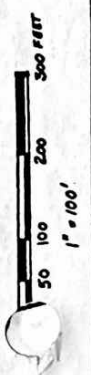
Purchase open space / Preserve Trail

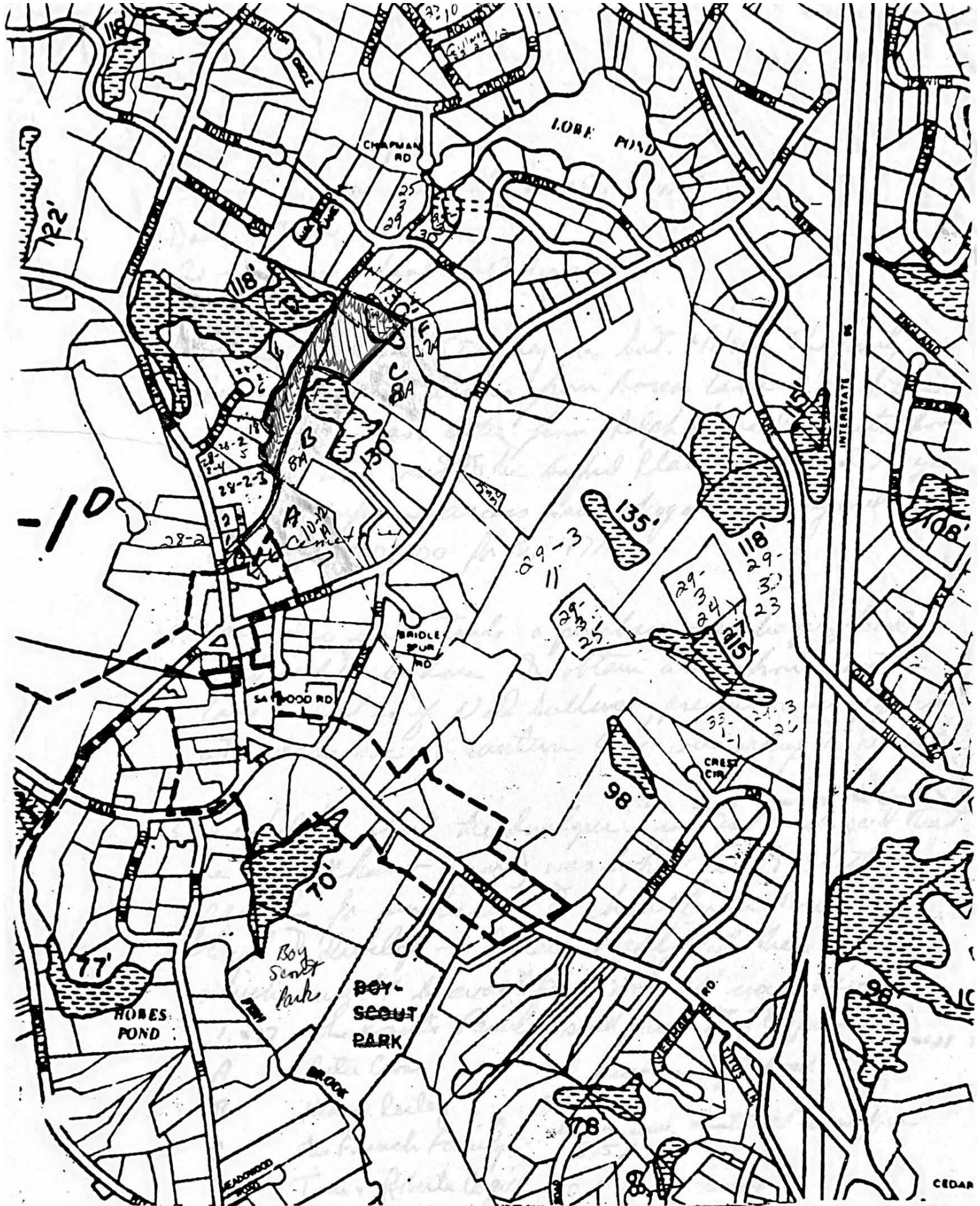


PROPOSED LAND GIFT TO
THE TOWN OF BOXFORD



- LAND CONTOUR - IN FEET
- WATER BOUNDARY
- STRAIGHTENED
- PROPOSED GIFT TO TOWN AREA I
- PROPOSED GIFT TO TOWN AREA II
- PROPOSED GIFT TO TOWN AREA III





E. K. Phil. 1911
John S. Smith, 34

Memo to Liz Cope

From Nancy Merrill, Boxford, MA

Date June 3, 1991

Re - Chapman Lane - 17 Acres -

1. Talked to Karen Strogney on Sat. 6/1/91 - She firmly believes there is access from Boren Lane to her father's land - She has a letter from Ralph Leonard, realtor from Beverly, who went to the Bedford Planning Board 2-3 yrs ago to confirm access - and who gave her a signed value of \$300,000 for the 17A.
2. Karen also understands a purchase or exchange of land would need to be done to obtain access from Lantern Lane - that is if Ned Sullivan, present owner of parcel at cul-de-sac on Lantern Lane were willing to negotiate.
3. I asked her about the developer's interest - She said that he (Don't know name) was looking into abutting parcels for purchase to have larger tract of land to develop - I have highlighted these parcels which might be available - not all undeveloped -
 1. & 17 The Roberts Family small parcels along Chapman Lane
 - A Peter Cross 10 A access on Depot Road
 - B Henry Kerley 8 A
 - C The French Family - nephew, Dave, is interested in an offer 8.5 A
 - D Tom & Roberta Cargill 10 A - much swamp
 - E Phil Raper 19 A mostly swamp
 - F John Sanidas 3 A access on Depot Rd.

over →

Eliza Cope Memo 6-3-71 pg 2

4. Should I - you - we - get in touch with these owners to find out their potential interests in their land - Perhaps we could buy a larger parcel of open space?

BOXFORD TRAILS ASSOCIATION, INC.
BOX 95
BOXFORD, MA 01921

July 30, 1993

Estate of John J. Strogney
c/o Ms. Karen L. Strogney & Mrs. Janice E. Thompson
783 Haverhill St. 23 Prospect St.
Rowley, MA 01969 Georgetown, MA 01833

Dear Karen and Janice,

The Boxford Trails Association would like to advise you that it has recently acquired the parcel of land in "Chapman Lane Woods" known as the "French Woodlot". The heirs of Walter and Etta French conveyed the parcel to the Association and it was stipulated in the deed that the land shall forever be used only for passive recreational purposes. Obviously the Boxford Trails Association is very excited about this acquisition and would like to continue the efforts towards preserving the "Chapman Lane Woods" as an open conservation area.

It was determined during the acquisition process that the "French Woodlot" lies between two parcels owned by the Strogney family. The Boxford Trails Association would like to discuss the possibility of acquiring these two parcels. By acquiring these two parcels, the entire "Chapman Lane Woods" could be preserved as a conservation area, which is probably the best use for the area given the wetlands and current zoning restrictions.

Please let me know if there is any interest on the part of the Strogney family in the above and when we might be able to get together to discuss the next step.

Very truly yours,

Nancy N. Merrill, President
Boxford Trails Association, Inc.

Dear.....

Boxford Trails Association ^{line} would like to advise you that it ^{wood} has recently acquired the parcel of land in "Chapman Woods" known as the "French Lot". The heirs of Walter and Etta French conveyed the parcel to the Association and it was stipulated in the deed that the land shall forever be used only for passive recreational purposes. Obviously Boxford Trails Association is very excited about this acquisition and would like to continue the efforts towards preserving the "Chapman Woods" area as open conservation area.

It was determined during the acquisition process that the "French ^{wood} Lot" lies ~~in~~ between two parcels owned by the Strogney family. The Boxford Trails Association would like to discuss the possibility of acquiring these two parcels. By acquiring these two parcels the entire "Chapman ^{line} Woods" area could be preserved as a conservation area, which is probably the best use for the area given the wetlands and current zoning restrictions.

Please let me know if there is any interest on the part of the Strogney family in the above and when we might be able to get together to discuss the next step.

Very T Y

1-23-91
Nancy Merrill
5081-887-2194

Information about the Perley-STROGNEY Chapman Way property
7A east of Chapman lane
10A west of " "

location: 17A between Georgetown Rd & Boren lane

Chapman Way - Trail goes from Georgetown Road - enter on gravel road north of cemetery opposite FIRST CHURCH. Trail exits onto Boren lane over a 50 wide access which is part of the Amberwood subdivision -

History: Barbara Perley gave this property to John Strogney of Heather Road, Georgetown in ~~her~~ her will three years ago. A deed has not been registered into Registry of Deeds -

Briefed assesses this property at \$51,000 Taxes 548.25
B. Perley's assets at time of death - this property was valued at \$15,000

between NOON & 3 P.M. ^{middle unit} RT 133, Dodge Rd. East 1 1/2
call before NOON Karen Strogney, Unit 9B, Millwood Apts, Rowley Ma 948-2700
has POWER OF ATTORNEY for her father - John Strogney.
Appraised value of 17A \$300,000 negotiable.
she has done ground testing of land.

Briefed location data: Map #29 Section 1 lot 19 Assessors office
listed under Barbara & Bertha Perley
Taxes are billed to JOHN STROGNEY

Fundraising: raise money to purchase property with a ck thru donations
to ECGB

20 Cross Road
Boxford, Ma. 01921
February 8, 1991

Miss Karen Strogney
Unit 9B
Millwood Apartments
Rowley, Ma. 01969

Dear Karen,

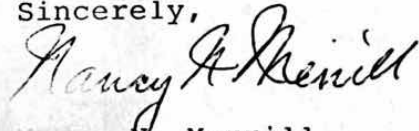
On behalf of the Boxford Trails Association, I am writing to you to state our wish to protect the Chapman Lane trail and the abutting forest land which comprises your father's 17 acres in Boxford between Georgetown Road and Boren Lane.

We wish to pursue the various options from outright purchase of the land by a non-profit open space organization to other options. To this end, we met Friday, February 1, 1991 with Mel Prohl, Boxford resident and BTA member, and Friday February 8, 1991 with Ed Becker, Director of Essex County Greenbelt Association.

I will have an 'opinion of value' processed for this land. Then we can review the options.

Thank you for your time and interest in this review process. I look forward to walking the Chapman Lane Trail with you on Saturday, February 9, 1991.

Sincerely,



Nancy A. Merrill
President, Boxford Trails
Association

Karen Strogney
783 Haverhill Street
Rowley, Ma. 01969

Dear Karen,

Thank you for your letter of September 13, 1991. The
Boxford Bay Circuit Program Committee is very much
interested in protecting and preserving the Chapman Lane
from Georgetown Road to Boren Lane.

Mel Prohl and I are meeting with the Boxford Land
Acquisition Committee and Boxford Conservation Committee
on Tuesday, October 1, 1991 to discuss the possibility
of the town making an offer on your father's property.

Sincerely,

Nancy N. Merrill
Boxford Bay Circuit Program Committee, Chairman
20 Cross Road
Boxford, Ma. 01921

September 24, 1991

Dear Nancy,

Here's the story so far
re: Barbara Perry's land -

① It is 17 acres

② As of Monday, Oct 3rd, 1991
the tax due on that

Mr. Kemp parcel will be \$280.68
including interest.
land can't feed on property

③ Within three weeks Frank
Perry will be taking action
re: all delinquent properties.

④ The Tax Collector's office will
accept money from anyone
who wishes to pay -

⑤ It will be ages before we
(the Assessors) receive notice
from the Probate Court that
John Stogney (sp?) is, indeed,
now the owner of the
property.

→

Memo to Audrey Romasco
From Nancy Merrill *NMM*
Date May 11, 1991
Re: Chapman Lane

I am sending you this memo to set forth the situation as I perceive it. Then, we can talk. You are busy with Town MEeting and I am assigned during the next three weeks to Valley Forge, Pa. I will ^{be} home weekends.

I feel that the 17 acres that protects Chapman Lane deserves our protection - through public and private funding. I have asked Eliza Cope of the Trust for Public Land to mediate and evolve a workable solution. TPL's address is 67 Batterymarch Street, Boston, Ma. 02110. (617) 737-0261. They have worked on the acquisition of Walden Woods, Concord, Ma. and Maudslay State Park, Newburyport, Ma.

Does John Strogney have a clear access from Boren Lane? I know the Planning Board's intent was to provide a clear access. When I look at the sub-division plan and talk to the abutters and John Sanidas, there is a reasonable doubt. A 'clear access' or 'no access' situation will determine the price of the parcel.

When I called John Sanidas to ask if he could donate some money towards the preservation of this parcel, he said he did not have the money, appreciated what I was trying to do, liked the trail and thought it should be protected. He also said that he owned the access from Boren Lane and that there was not a clear 50 feet where it enters the Chapman Lane property. Tom Cargill owns a corner. John said that I should call Town Council and ask him to draw up a deed giving the access that John owns to the BTA as a perpetual trail. I have dragged my feet because I knew that was not the intent of the Planning Board. This also would be unfair to John Strogney who is of the opinion that he has clear access. Karen Strogney, his daughter, is acting as his power of attorney. She and her father are in favor of the trail and would like to see the entire parcel preserved as open space, but they also want to receive the fair market value. Karen understands that if she gives a Conservation Restriction, the value of the CR could help their tax situation.

This is not a clear situation. I do feel that we should work together to resolve this in the best interests of all. That is why I trust that Eliza Cope can help us all.

cc Eliza Cope

Memo to Boxford Board of Selectmen
Boxford Planning Board
Boxford Conservation Commission
Boxford Land Acquisition Committee

From: Nancy N. Merrill

Date: May 8, 1991

Re: Preservation of Chapman Lane

Chapman Lane was designated a public way in 1700. In 1850, it was discontinued. It has remained a well used trail by citizens and friends of Boxford. It is a trail that deserves our protection.

I invite you to join me and the Trust For Public Land to develop a plan for protecting this trail. We will need to employ our creative ingenuity.

Chapman Lane is part of the northern linkage through Boxford for the Bay Circuit Program.

Chapman Lane runs through 17 acres of lovely forest land. This 17 acre parcel, an open space of land in the center of Boxford, also deserves our special attention. Protection of the entire 17 acres and trail is in the spirit of the Bay Circuit Program.

I will lead a walk on Chapman Lane and the 17 acre parcel on Saturday, May 18, at 9:00 am. I invite you all to accompany me. We will meet behind the Community Center.

cc: Boxford Recreation Committee
Boxford Trails Association, Inc.
Boxford Bay Circuit Program Committee

Memo to: Boxford Planning Board
From: Nancy N. Merrill, Pres. BTA, Inc.
Chairman, Boxford Bay Circuit Program
Date: May 19, 1991
Re: Chapman Lane

The walk on the Chapman Lane trail was appreciated by all who attended. This is a gem that more Boxford residents need to know and then appreciation will follow. In Attendance: Kevin Bell, Russell Hopping, Randell Hopping, Bob Was, George Horner, Lucy Cheever and I.

I have asked a surveyor to review the Amberwood subdivision plan. The following are questions that he raised:

1. Does John Storgney own a developable lot for a sub-division and also own a lot that can have one house built on it?

Would a pork chop lot owner need to build a regulation road over Chapman Lane in order to have the required 50 foot frontage on an approved way?

2. I will be asking Kevin Wood for his opinion on this parcel as a buildable lot.
3. An abutter to Chapman Lane, Mr. Fiore, has a deed which describes his boundary by Chapman Lane. There is a question that if Chapman Lane is private, perhaps Mr. Fiore's ownership goes to the middle of the 50 foot parcel separating the two abutters. The deed specifically excluded a fee interest in Boren Lane, but did not exclude Chapman Lane *in the same way*

I would deeply appreciate the help of the Planning Board to plan with me and Karen Storgney and the Trust for Public Land the future of this lovely open space parcel.

Memo to: Boxford Planning Board
From: Nancy N. MErrill, Bay Circuit in Boxford
Date: June 19, 1991
Re: Chapman Lane Between Boren and Georgetown Roads

1. The Trust For Public Land
Eliza Cope
67 Batterymarch
Boston, Ma. 02110-3306
(617) 737-0261
2. Is this lane/trail worthy of our attention and protection?
What plan of action should we pursue?
3. There are 3 parties interested in the 17 Acres that surround Chapman Lane.
 - a. Boxford Bay Circuit northern trail and the BTA
 - b. a man to purchase for one house lot and a private golf range
this man has no interest in a conservation restriction on the trail.
 - c. a developer who is looking at abutting land to annex to this 17 acres for a larger development.
4. Should the Town request that TPL (The Trust for Public Land) actively engage on our behalf the following:
 - a. purchase an option to buy from the owner - John Strogney
 - b. TPL will need to do a title search and determine a reasonable purchase price.
 - c. Call a special town meeting to obtain the support of the Town to purchase over a one-two year period.
 - d. Seek private funding as well as public funding.

5. Abutters:

Henry Perley	8 acres
Peter Cross	10 acres
The French Family	8.5 acres
Philip Rane	19 acres (mostly swamp) some dry land
Tom and Roberta Cargill	10 acres (some swamp)
The Roberts family	small parcels (2) along Chapman Lane
John Sanidas	3 acres
6. What is the legal access to this property - 17 acres

5 February 1992

Nancy Merrill
20 Cross Road
Boxford, Ma.
01921

Dear Nancy:

The information you forwarded to me, from Mel Prohl, was appreciated. I gained a lot of insight from our meeting of 25 Jan. and the information you sent.

All the data I have gathered has been presented to my sister Jan Thompson and her husband Phil. I must say I was very surprised at their reaction to the data. Phil is still of the belief that there is 17 acres of property and the French family's property does not interfere with ours. He says our 2 lots are contiguous.

At this time I must make the following request: A written offer of purchase must be submitted to me by 15 April 1992. If this offer is not received by 15 April another buyer will be considered.

Please contact me if there are any further questions.

Sincerely,


Karen L. Strogney

Acquisition Committee meeting
February 20, 1992

Purpose of meeting with the Committee: To bring the Committee up to date on the current situation and to see what action the Committee might take with regard to the purchase of the backland needed to preserve old Chapman Lane.

Pertinent facts: There is approximately 27 acres of backland completely surrounded by privately held land parcels, most of which have houses on them. The land is owned by two families, the French and the Strogney families. The Strogney land consists of two parcels given to John Strogney (now deceased) by Barbara Perley. While it was originally believed that the two parcels were contiguous and amounted to about 17 acres, a detailed title search has revealed that a 7 acre parcel belonging to the French family lies between the two Strogney parcels and that the total acreage of the two Strogney parcels is about 13 acres. Since Chapman Lane cuts across the French 7 acre parcel, it is therefore necessary to acquire land from both families to protect Chapman Lane.

Recommendation: To purchase the 27 acres, the land to be priced as backland without frontage on any public way and without any ready access. The total offering price should be divided equally between the two parties.

Contacts: David French who walked the property with us last fall and who will, we believe, represent the interests of the French family has expressed the wish that the land be kept as backland and that the French land be identified by some suitable name such as the "French Lot". We anticipate no problem in dealing with David on this matter.

The situation is not as clearcut with regard to the Strogney Family. The land has, we believe, been inherited by the two daughters of John Strogney and these two branches of the family have not agreed on a possible course of action as yet. (Note that we have not attempted to check probate records on the John Strogney will). However Karen Strogney, with whom we have discussed the results of our title search and our conclusions about the lack of access, has requested an offer for the Strogney land by April 15, 1992.

Open Space Oasis along Chapman Lane.

part of the Boxford Bay Circuit Linkage.

Property that can be purchased to protect Chapman Lane for 1½ miles.

Clint French family 2-3 parcels:

Nat Dorman lot	7 A
Ancil Dorman lot #1	8 A

Perley-Strogney parcels

(was a 10 A parcel)	5.5 A
	7 A

27.5 acres

Possibility:

Franklin C. Roberts 2 parcels:

.59 A
.44 A

1.03 acres

Grand Total

28.53 acres

20 Cross Road
Boxford, Ma. 01921
February 22, 1992

Karen Strogney
Millwood Apts. 9B
Rowley, Ma. 01969

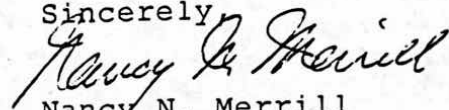
Dear Karen,

Mel Prohl and I met with the Boxford Land Acquisition Committee
Thursday evening, February 20, 1992.

The Land Acquisition Committee is very much interested in this
land for use by the Town. We would like to give you an offer
when there is a clear title.

Please advise at your earliest convenience.

Sincerely,



Nancy N. Merrill
Chairman,
Bay Circuit Program Committee

cc: Boxford Land Acquisition Committee

March 5, 1992

Janice Thompson
23 Prospect Street
Georgetown, MA 01833

Karen Strogney
Millwood Apts. 9B
Rowley, MA 01969

*The French Woodlots
and
The Parley - Strogney*

Dear Janice and Karen,

As I wrote to Karen, February 22, 1992, Mel Prohl and I met with the Boxford Land Acquisition Committee on February 20, 1992. This committee and the Boxford Trails Association, Inc., are very much interested in the preservation of the 27 acres here identified as Chapman Lane Woods. At that meeting, the Land Acquisition Committee agreed to give you an offer when there is a clear title.

The Boxford Bay Circuit Program Committee wishes to preserve the historic Chapman Lane and in the spirit of the Bay Circuit program, protect it with the surrounding open space owned by the heirs of John Strogney and the heirs of Walter W. French. The spirit of the Bay Circuit is to provide an open space arc around Boston from Plum Island to Duxbury. Where there has been development, the Boxford Bay Circuit Program Committee has designated linear trails. Now that we find this 27 acres of open space, we want to preserve these woods and Chapman Lane.

Please reference the Position Statement on Land Acquisition, Chapman Lane Woods, written by Mel Prohl, and dated April 5, 1992.

The heirs of the French family would like to see their land preserved as open space. We understand that they are willing to negotiate with the Town on the basis that their land be treated as backland.

We would appreciate a prompt reply on this matter. If there are questions that either of you have, we can arrange a meeting.

Very truly yours,

Nancy N. Merrill

Nancy N. Merrill
President, Boxford Trails Association, Inc.
Chairman, Boxford Bay Circuit Program Committee

20 Cross Road
Boxford, MA 01921
508-887-2194

*cc: Boxford Acquisition Committee
Ruth Bortyfield*

*Dave French
Eliza Cope - The Trust for Public Land
Fred True*

30 March 1992

Nancy Merrill
20 Cross Rd.
Boxford, Ma.
01921

Dear Nancy:

Enclosed is a copy of letter from Richard Gilmore on the title search he did on the Boxford Property.

I have also included a portion of an appraisal I had done. This report shows an access to Chapman Ln. from Boren Ln.

I hope this information is helpful in aiding you, and your associates, to reach an acceptable offer for the property. Your offer should be submitted by 15 April per my letter of 5 Feb. 1992.

Please let me know if I can help further.

Sincerely,


Karen L. Strogney

Encl. (2)

HSA
HANCOCK
SURVEY ASSOCIATES

#4064

July 19, 1990

Mr. Phil Thompson
23 Prospect Street
Georgetown, MA 01833

Dear Mr. Thompson:

On May 14, 1990 and July 16 & 17, 1990, Hancock Survey Associates, Inc. conducted official deep soil observation and percolation testing at property of Jack Strogney off Lantern Lane in Boxford, MA (Tax Map 29, Block 1, Lot 19). This work was accomplished pursuant to our Contract dated April 4, 1990.

The soil testing was successful and yielded seven (7) sites which appear suitable for construction of a subsurface sewage disposal system. Another site was successfully perced but would require a spring groundwater observation hole in the same area. In total, it appears eight (8) potential disposal system sites were located. We have enclosed a copy of our Soil Test Field Report for your file.

The ability to obtain building permits for these sites is contingent upon preparation and approval of a Definitive Subdivision Plan for the site. Additional environmental permits would probably be required for construction of access roads, dwellings or septic systems.

Should you need further assistance or if you have any questions, please call.

Sincerely,

William J. Manuell

William J. Manuell
Project Engineer

WJM/smj

Enclosure

cc: Karen Strogney
HSA File

SOIL TESTING FIELD REPORT

HANCOCK SURVEY ASSOCIATES, INC.
2 Electronics Ave. Danvers Industrial Park
DANVERS, MASSACHUSETTS 01923
(508) 777-3050

HSA JOB NO. <u>4064</u>	SHEET NO. <u>1</u> OF <u>3</u>
DATE <u>5/19/90</u>	CONTRACTOR <u>Killam</u>
WEATHER <u>clear</u>	TEMP. <u>60</u> Oat <u>PM</u>
LOCATION <u>Property of Jack Stogney</u> <u>Map 29 Block 1 Lot 19</u> <u>Bowdoin, MA</u>	

CLIENT

NAME Phil Thompson
ADDRESS 25 Prospect St
Georgetown, MA 01833
PHONE _____

OWNER (if different) _____

PRESENT AT SITE

ENGINEER William Manuel
HEALTH AGENT J. Romanski
OTHERS Phil Thompson

SPECIAL NOTES, REMARKS & RECOMMENDATIONS:

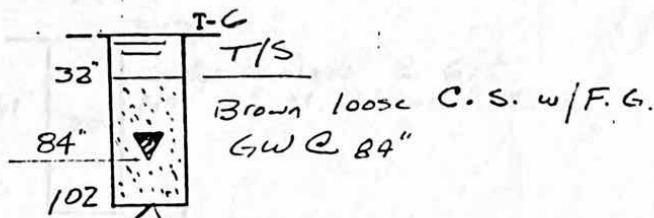
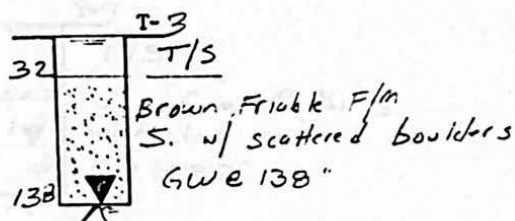
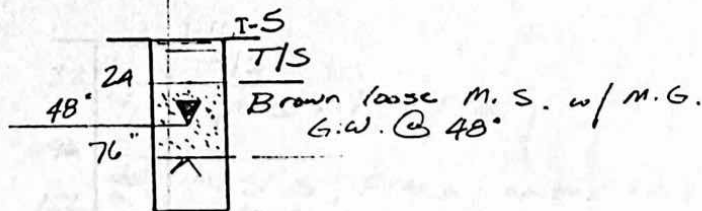
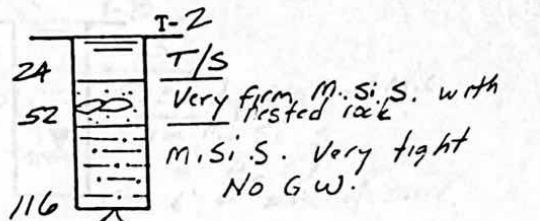
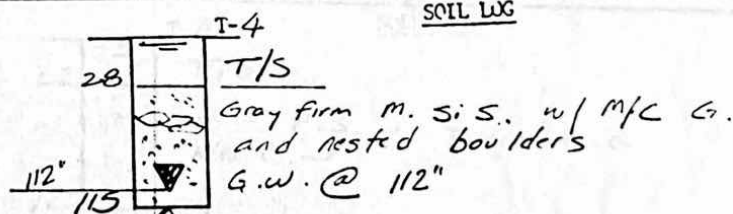
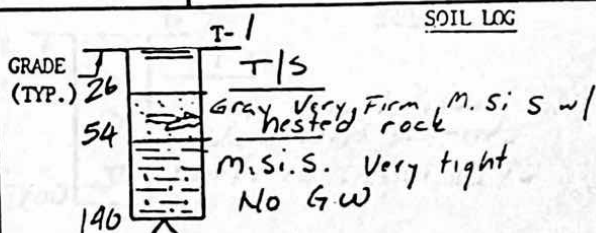
OFFICIAL deep observation testing

PERCOLATION TEST RESULTS

NO.	<u>None Performed</u>
DEPTH- GRADE TO 12"	
PRESOAK @ 12"	
12"	
9"	
8"	
7"	
6"	
9" to 6" TIME	
DESIGN RATE	

SITE SKETCH (not to scale)

See attached sketch



G=Gravel S=Sand Si=Silty M=Medium C=Coarse G.W.=Groundwater
T/S=Top & Subsoil Tr=Trace C/S=Clean/Sharp F=Fine B=Bony

BOTTOM (No refusal) Λ

REFUSAL/LEDGE |||||

Note: Test results shown hereon should in no way be construed as a representation
that the land tested is suitable for subsurface sewage disposal.

Rec'd
10-31-90

GILMORE AND WALSH

Attorneys at Law

STEPHEN D. WALSH
RICHARD S. GILMORE
LISA A. GREENBERG
NANCY JAFFEE

19 CHERRY STREET *Danvers, Massachusetts* 01923

(508) 777-3200

FAX (508) 777-6256

October 29, 1990

Ms. Karen L. Strogney
783 Haverhill Street
Rowley, MA 01969

Re: Jack Strogney - Boxford land

Dear Karen:

I have done a title rundown from the original deeds into Clarence E. Brown of the ten (10) acre and seven (7) acre parcels in question. Enclosed you will find copies of the deeds dated May 6, 1919, and recorded in Book 2412, Page 539, and July 2, 1928, recorded in Book 2790, Page 174, respectively. Clarence E. Brown owned said parcels at his death and such were inherited by his wife Jeannette P. Brown. Upon Jeannette's death, her sister Bertha Perley inherited the parcels, and then Barbara Perley inherited and left the parcels to your father.

Since 1919 and 1928 there is no question about ownership of your father's land.

The six (6) acres purchased by John Sanidas in 1985 was a separate parcel which was originally owned by Clarence E. Brown and was evidenced by deed recorded in Book 2412, Page 540, the next deed recorded after the ten (10) acre deed. Enclosed you will find copy of that deed.

If you have any questions on the enclosed, please let me know.

Based on the above evidence your father owns the parcels in question free of all encumbrances and is entitled to sell them.

Very truly yours,


Richard S. Gilmore

RSG/amc

Enc.

cc: Cushman Sears
235 Newbury Street
Danvers, MA 01923



RALPH
LEONARD
ASSOCIATES, INC.



118 Bridge Street, Beverly, Massachusetts 01915 (508) 922-0252

December 6, 1989

Ms. Karen Strogney
Unit 9B
Millwood Apartments
Rowley, MA 01969

Re: John Strogney Property
off Boren Lane, Boxford

Dear Karen,

As you requested, I have conducted an investigation into the property inherited by your father from the estate of Barbara C. Perley. Since we talked, I have contacted Debra Johnson, the Town Planner, Craig Falk, Chairman of the Planning Board, and appeared before the Planning Board on your father's behalf on November 15, 1989. I have obtained the following pertinent information:

* First of importance is the fact that when John C. Sanidas obtained approval for the "Amberwood Subdivision", the Planning Board of Boxford required him to increase the layout of Chapman Lane from Boren Lane to the then Perley property to 50 foot wide for purpose of future road access to the rear land. This, therefore, provides a possible access for utilizing the land for residential development.

Examination of the configuration of the land and the topography shows some limiting factors to full development of the land. First, over 500 foot of road would have to be built to reach the property. Second, there are wet areas at each end of the property. Third, the length and narrowness of most of the property makes it impossible to create a road with lots on each side. Physically, a road could be brought in of approximately 1,250 feet and running into the seven acre lot to create three lots. However, engineering would have to be done to determine water table, percolation rates, distance to wet lands, and cost of road to determine if building permits could be obtained and that a road of this length would make economic sense.

In order to explore a less complicated solution, I went before the Planning Board to determine if they would allow a pork chop lot to be created. They basically said that it could not be done but suggested we could apply for permission to build a road for one lot with requests for waiver on road construction.

4/1/92 - Notes made by Nancy N. Merrill

Talked with Dave Woonton

- NDM-
VISIT SITE
- resigning from Planning Board and Land Acquisition Committee
 - Attend tonight's meeting to talk about Chapman Lane.
 - Public Hearing on King Edward Court.
 - press for access to Georgetown-Rowley State Forest from sub-division for the local residents and for the town.
 - press for shoulder path along sub-division road.

Called Fred True, Georgetown, John Strogney's lawyer.

- he needs copies of the deeds that show a cloudy title. a report of Mel Prohl's findings. Mel should write a report stating his findings.
- The Town can clear the title after we settle on a price for all parties by having a warrent article stating:
To see if the Town will vote to acquire by purchase ^{or} otherwise the following described land '.....' and further to appropriate for the purchase a sum of money (or dollar amount) and raise this by transferring from capital outlay or the Conservation Fund.

the 'otherwise' term means 'by eminent domain' which will clear title for a town. This is fine when the price is determined beforehand. Town can also put in the warrent 'to hold harmless' which will prevent unlimited damages from arising from someone.

- Town can not give to charity. example was the Hurrican of 1938. Town agreed to send work crews on private property to cut trees. Town can't spend public funds on private land.
- People can donate to Greenbelt for purchase, then Greenbelt could turn money over to the Town for purchase.
- When Town owns land, the group that oversees the property must vote not to use the land anymore before the Town can go before Town Meeting to vote to sell the land. The Conservation Commission should govern this open space because they are not likely to vote to sell the land. They will hold it for open space protection for the Town. If the Town cannot buy the land, can ask to place a CR on the land to protect certain aspects of the land, such as limited building. - Chapman parcel could be sold as one house lot. Benefits - save taxes for single house owner. because the land would be assessed as one house lot.

April 5, 1992

Mr Fred True, Jr. 352-8122
81 Elm Street
Georgetown, MA01833

Executor for John Strogney

Dear Mr. True:

I am sending you the plan of Chapman Lane Woods, drawn by Mel Prohl which shows two parcels of Perley/Strogney land which the Boxford assessors' map shows as contiguous. In actuality, from Mel's research, these two lots, 5.5 acres and 7 acres are separated by the 'Nat Dorman' lot which is owned by the heirs of Walter W. French. The 10 acre parcel appears to be only 5.5 acres now.

Have you been in touch with Cushman Sears? Mel showed him this map and explained his deed search.

We have a full notebook of deeds. I would be happy to show you what we have if you would like to meet with me. Perhaps we could arrange a convenient time for both of us.

Sincerely yours,

Nancy N. MErrill

508-887-2194

20 Cross Road
Boxford, Ma 01921

Melvin A. Prohl

Melvin A. Prohl

April 8, 1992

Position Statement on Land Acquisition
Chapman Lane Woods

The French-Wood lots
and the Strogney
Wood lots

The designation "Chapman Lane Woods" is used to denote a 27 acre tract of backland located internally in the area enclosed by Georgetown Road, Boren Lane, and Depot Road. Chapman Lane Woods is completely surrounded by parcels of private property which abut or are adjacent to the aforementioned roads. All of these parcels have been surveyed and plans are available at the registry of deeds. Thus the perimeter of Chapman Lane Woods is completely defined.

Deeds to parcels of land within Chapman Lane Woods are currently held by heirs of John Strogney and Walter W. French. The property descriptions in these deeds are for the most part vague and incorporate wording traceable to old deeds written many years ago or more - some well into the last century. While the holders of these deeds of long ago knew where these parcels were located and where the stakes and stones at the lot corners were to be found, this knowledge is mostly lost to the present owners.

The current assessors maps show the two Strogney parcels as being contiguous and of 17 acres. The remainder of the 27 acres is assigned to the French family. An extensive title search by Mel Prohl has revealed that the "Nat Dorman" lot held by the French Family lies between the two Strogney parcels and also that the acreage of the two Strogney lots is closer to 13 acres than to 17 acres. However the exact location of the internal lot boundaries remains largely unknown. A Land Court decision would be required to establish legal ownership.

It is the position of those representing the Town of Boxford that Chapman Lane Woods should be treated (1) as backland with no access to town roads and (2) as land lacking in economically justifiable development potential even if land for an access road could be purchased from abutting property holders.

Although there is no clear title to the land parcels in Chapman Lane Woods, there is a procedure by which the town could acquire the land without a Land Court decision. This procedure requires the cooperation of the two families. Each family would by a Quitclaim Deed sell to the town for a stipulated amount all their rights to any property which they may hold within Chapman Lane Woods. Assistance from Town Council is, of course, needed if this acquisition procedure is to be followed.

The question has been raised as to the possibility that some party as yet unknown might come forward with a claim of ownership within Chapman Lane Woods. The title search has revealed no such possibility and the risk of this happening is believed to be essentially nil.

Melvin A. Prohl

Melvin A. Prohl

April 4, 1992

Memo to: Boxford Selectmen

Boxford Planning Board

Boxford Conservation Commission

Boxford Land Acquisition Committee

From: Boxford Bay Circuit Program Committee

Date: February 12, 1991

Re: Purchase open space to protect an ancient Boxford way.

The Boxford Bay Circuit Program Committee is discussing and negotiating with the owners of a parcel of land, 17 acres, between Georgetown Road and Boren Lane, the various options that can be used to protect the ancient way of Chapman Lane. Chapman Lane was the road that went from Boxford's first meeting house situated on the northerly knoll of the current Village Cemetary to the 'Old Andover' road, now known as Ipswich Road. This ancient way is described in the Selectmen's minutes of March 7, 1722/3, page 200. This ancient way has been used by the residents of the town of Boxford ever since. This ancient way deserves our protection as is.

The Boxford Bay Circuit Program Committee wishes to meet with your committee to review our plans.

Nancy Merrill, chairman - Boxford Bay Circuit Program Committee
887-2194

2/12/91

Warrent^a article for the May, 1991, Boxford Town Meeting.

To see if the Town will vote to raise and appropriate or transfer from available funds a sum of money to purchase a parcel of land, 17 acres, between Georgetown Road and Boren Lane to protect the ancient way of Chapman Lane which was the road from Boxford's First Meetinghouse in the current Village Cemetary to the Old Andover Road (now Ipswich Road), This land to be put under the jurisdiction of the Boxford Conservation Commission, the value of the monies to be announced at town meeting; or take any other action thereon.

^{Boxford}
Sponsored by the Bay Circuit Program Committee.

never used!
NNM 2/23/93

In response to your letter of June 21, 1990 relative to show, there is no outstanding tax balance for Fiscal Year 1989 of \$256.00. In addition there are also several years of interest due on this balance.

If no response is made by June 21, 1991, the Town will proceed with the sale to protect the Town's interest in this matter.

Very truly,

Town Clerk

Board of Selectmen

North
Cody at
Slut to
1993



TOWN OF BOXFORD

MASSACHUSETTS

01921

TAX COLLECTOR

June 27, 1988

Investigation to resolve

TO: Robert E. Andrews, Atty.
64 Central Street
Georgetown, Ma. 01830

SUBJ: 31.5A Land, Chapman Lane Area
Parcel # 1266

In response to your letter of June 21, 1988 relative to above, there is an outstanding tax balance for Fiscal Year 1988 of \$256.68. In addition there are also accrued fees and interest due on this balance.

If no response is made in-so-far as payment, the Town will proceed with Tax-Title to protect the Town's interest in this matter.

Yours truly

Francis F. Perry
Francis F. Perry
Tax Collector

FFP/meb

cc Board of Assessors

in Sept advertised Tax Title you from now said could plan strategy w/pt of redemption 1st payment pl 2nd payment due

call to assessors - Barbara King Joan Behrens 887-8848 Aug 17 887-3674

887-3673

NOTE:- COPY of ANDREWS LTR SENT TO JOHN SANIDAS 7/1 RB